Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1193
Claimant:	Caleb Hernandez
Adjuster:	Darin Tyler

8-3-23 - Claim opened following a report of a collision at an intersection. Insured vehicle was turning left when it struck the claimant's vehicle, which was proceeding straight through the same intersection. Police report requested. Initial contact made with insured, who confirms the left turn and states the oncoming vehicle was approaching at speed.

8-11-23 - Claimant reports a wrist fracture sustained in the impact and has retianed counsel. All further communication to be routed through the claimant's attorney. Medical authorization requested through counsel. Reserve set for bodily injury pending receipt of treatment records.

8-12-23 - Reviewed scene photographs and vehicle damage estimates. Damage to the claimant's vehicle is consistent with a driver-side impact. Insured's vehicle shows front-end damage. Witness statement obtained from a pedestrian at the corner, who states the insured signaled the turn but the claimant's vehicle entered the intersection on a changing signal. Liability remains under review.

8-21-23 - Spoke with claimant's attorney regarding the status of the file. Counsel indicated the client is currently in a cast and has been referred to an orthopedic specialist for follow-up. Attorney requested a demand package once treatment concludes. Advised that the claim will remain open pending a review of the police report and signal timing records.

8-24-23 - Police report received. It records the insured as cited for failure to yield on a left turn and notes the claimant's vehicle was not cited. Liability assessment updated to reflect probable shared fault, pending the outcome of the singal timing review. Bodily injury reserve reviewed and maintained. Next action: await specialist records and the attorney's demand package.

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Recorded Statement

Claim number:	C-1193
Statement of:	Caleb Hernandez
Taken by:	Darin Tyler
Date:	7-29-23

Q: Thank you for agreeing to give this recorded statement. Can you please state where you were when the collision happened?

A: I was in Pearland, Texas, driving through an intersection on my way home from work.

Q: Were you turning, and if so, in what direction?

A: Yes, I was turning left. I had a green arrow, or at least I bleieved I did, and I started into the turn when the other vehicle came through.

Q: Did you see the other vehicle before the impact?

A: Not really. I glanced to my right when I started the turn and I didn't see anything coming. Then there was a loud bang and my car spun a little.

Q: How fast do you estimate you were going?

A: Maybe fifteen or twenty miles an hour. I was slowing down for the turn.

Q: Was anyone else in your vehicle?

A: No, I was alone.

Q: Did you call for medical attention, or did you go to a clinic afterward?

A: The paramedics checked me out at the scene. Later I went to an urgent care clinic because my wrist was swelling badly and I couldn't move my fingers properly.

Q: What injuries were diagnosed?

A: The doctor said I have a fracture in my left wrist. I've been told I'll need a cast and possibly a follow-up with a specialist.

Q: Have you been out of work since the accident?

A: Yes, I'm not able to do my job with one hand, so I've been off since then.

Q: Is there anything you'd like to add to your statement?

A: Only that I was careful going into that turn, and I'm hoping this gets sorted out quickly.

Q: Thank you. This concludes the recorded statement.